

Chunduru Uma Devi vs Chunduru Surendranath on 5 May, 2022

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

HON'BLE Mr. JUSTICE AHSANUDDIN AMANULLAH
AND

HON'BLE Mr. JUSTICE TARLADA RAJASEKHAR RAO

C.M.A. No.1193 OF 2018

Chunduru Uma Devi, W/o. Surendranath,
D/o. late Kantipudi Veera Venkata
Subrahmanyeswara Rao, aged about 26 years,
House wife, Hindu, R/o. D.No.10-70, Vetapalem,
Samarlakota Mandal, Kakinada Junior Civil Judge
Court Limits

...Appellant/Petitioner

Versus

Chunduru Surendranath, S/o. Chunduru Edukondalu,
Aged about 35 years, Employee, Hindu, R/o. D.No.38-30-268,
NH-5, Green Gardens Street, Marripalem, Visakhapatnam
Urban, presently residing at Flat No.C20612,
Alkhar Community, State of Doha, Qatar.

... Respondent/Respondent

Counsel for the Appellant : Mr. P. Veera Reddy,
Senior Advocate
Ms. Sodum Anvesha,
Advocate

Counsel for the Respondent : Mr. Venkateswarlu Sanisetty,
Advocate

ORAL JUDGMENT

Date: 05.05.2022 (Per Hon'ble Mr. Justice Tarlada Rajasekhara Rao) Both the parties in the present Civil Miscellaneous Appeal are present before us along with their respective counsel.

2. (Divorce) Original Petition No.150 of 2015 was filed by Chunduru Uma Devi, seeking divorce against the respondent herein on the ground of cruelty and the same was dismissed by order dated 14.06.2018 passed by learned III Additional Senior Civil Judge, Kakinada. Aggrieved by the said order, the said Uma Devi filed C.M.A No.1193 of 2018 before this Court.

3. While pending the appeal before this Court, this Court directed to conduct mediation between the parties. Accordingly, Ms.Kodati Ramya Krishna, Advocate-Mediator, conducted mediation and after interaction with the parties, a report was filed before this Court which is extracted hereunder:

"HIGH COURT OF ANDHRA PRADESH AT AMARAVATHI Between:

Chunduru Uma Devi

....Appellant

And

Chunduru Surendranath

.....Respondent

MEDIATION REPORT SUBMITTED BY THE MEDIATOR In pursuance of the order of this Hon'ble Court dated 23.02.2022, I was appointed as Mediator in the above CMA.

1. On the first instance of Mediation, both parties were called for mediation on 26.03.2022 after being duly informed to them about the order and Mediation. Both the parties attended for mediation on the said date. Their counsels were also present. During the interaction with the parties, they explained their grievances which are beyond the scope of the CMA. Since this being mediation, I explained them the scope of mediation in the presence of their counsels. Both parties explained the circumstances that kept them away from marital life. After elaborate discussions with both the parties, it was decided to hold another mediation session for the welfare of the parties, as they have a minor boy. The next date of mediation i.e. 03.04.2022 was informed to the parties in advance.

2. On the Second instance of Mediation on 03.04.2022, the Appellant and her counsel is present. The Respondent Counsel present, however, the Respondent did not attend for the Mediation. Thus the Mediation could not take place. But the Appellant interacted and explained her version. As per the Appellant, she is residing independently with her minor son in Hyderabad for the past 9 years. The Respondent could not give confidence at any point of time, for a happy marital life. Thus, she clearly stated that the Respondent is not in a position to take care of her and her son. Thus both the counsels were informed about the next date of hearing as 17.04.2022.

3. On the third instance of Mediation on 17.04.2022, the Appellant and Respondent were present. Both parties Counsels are present. The Mediation commenced in the presence of the parties. After elaborate discussions, the parties came to an understanding that marriage is irretrievably broken and there is no point of return. Finally the Appellant and the Respondent came to an understanding with respect to the present CMA that they shall file appropriate petitions to convert the present CMA or seek leave of the Hon'ble Court that they are dissolving their marriage by way of mutual consent. Thus both the parties agreed for divorce by mutual consent. The Respondent agreed to pay maintenance towards the Minor Boy Praharsh Anand who is pursuing Education in an International School at Hyderabad. The Respondent agreed to pay Rs.1,00,000/- p.a. towards the expenses to the Boy and sought for Visitation Rights. The Appellant agreed that the amount be deposited in the account of the Minor Boy namely Chunduru Praharsh Anand i.e., Savings Bank Account

No:36599654148 of Vetapalem Branch IFSC Code:SBIN002810, Samalkot Mandal, East Godavari District. Respondent would be permitted to visit the Boy once in a month on second Sunday in a public place in the presence of a third party. In case, it is not possible on second Sunday, the next alternative date shall be informed in 2 days advance to the Respondent.

4. Further, the respondent shall not give any bad feedback, about the Appellant, to the minor boy. The minor boy shall not be sent out of country till he completes his SSC and in case if the boy is sent abroad, the Respondent shall have visitation Rights even in abroad. The Appellant agrees to withdraw the following cases i.e. CC No:82/2020 on the file of Learned Metropolitan Magistrate, Kukatpally and DVC No:72/2019 on the file of PJ CJ cum Addl. Metropolitan Magistrate, Rajendra Nagar. Though MC No:5/2016 on the file of Learned IV AJMFC, Kakinada, is in favour of the Appellant, the parties agreed that the Appellant doesn't require any maintenance amount for her. The Respondent agreed to withdraw the GOP No:905/2019 on the file of the Family Court cum CCC, Hyderabad, filed by him for the custody of the boy. Both parties agreed that they shall not harm one another. They agreed that they shall not raise any disputes in future against one another. They agreed that they shall not have any monetary claims against one another and shall file appropriate petitions before the Hon'ble High Court of Andhra Pradesh and see that they get divorce mutually by amending the prayer in CMA No:1193/2018.

5. Both the parties are well educated and despite mediation, they are determined to get their marriage dissolved. Thus the mediation is concluded between the parties in the above said terms and the parties resolved to settle the issue by dissolving the marriage by mutual consent. The parties thus resolved to put a quietus to their litigation.

The Hon'ble Court may kindly be pleaser to consider the report.

The fee of the mediator may be fixed by the Hon'ble Court.

Sd/-xxx MEDIATOR"

4. Basing on the Mediator's Report dated 26.04.2022, the appellant herein filed I.A. No.1 of 2022 seeking amendment of the prayer in the O.P.No.150 of 2015 on the file of the Court of the III Additional Senior Civil Judge, Kakinada by addition of words 'by mutual consent under Section 13-B of the Hindu Marriage Act, 1955' after the words 'marriage, dt.24.11.2012' and before the words 'and costs'.

5. This Court had interacted with the parties and they have stated that the terms of compromise in the Mediator's Report dated 26.04.2022 have been given effect to and therefore the matter may be disposed of in terms of the compromise.

6. In view of the above, I.A. No.1 of 2022 in C.M.A.No.1193 of 2018 is allowed. Consequently, the C.M.A.No.1193 of 2018 is allowed setting aside the impugned order dated 14.06.2018 passed in (Divorce) Original Petition No.150 of 2015 on the file of the III Additional Senior Civil Judge at Kakinada in terms of the Mediator's Report dated 26.04.2022 and the marriage of the appellant herein with respondent herein dated 24.11.2012 is dissolved. It is hereby made clear that the respondent is allowed to see the child once in every month and the respondent also shall pay an amount of Rs.1,00,000/- per year to the child. The petitioner/appellant herein is agreed to withdraw all the cases against the respondent herein. No costs.

7. Miscellaneous Applications, if any pending, stand disposed of.

----- (AHSANUDDIN AMANULLAH, J)
----- (TARLADA RAJASEKHAR RAO, J) MP
HON'BLE Mr. JUSTICE AHSANUDDIN AMANULLAH AND HON'BLE Mr. JUSTICE TARLADA
RAJASEKHAR RAO C.M.A No.1193 OF 2018 Date : 05.05.2022 MP